

PGA Flag Enforcement

		ATF ¹	AMS	APHIS Lacey	APHIS Core	CPSC	DDTC ¹	DEA	EPA (VNE)	EPA (other programs)	FDA (PN)	FDA (non-PN)	FSIS	FWS	NHTSA	NMFS	OMC	TTB
Entry Condition	Entry Type																	
SE, AE Certified	01	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
SE, AE Certified	02	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
SE, AE Certified	03	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
SE	06 (Not Weekly)	Yes	Yes	Yes	No	No	Yes	Yes	Y/N ²	Yes	No	Yes	Yes	Yes	Yes	Yes	Yes	Yes
AE Certified	06 (Not Weekly)	Yes	Yes	Yes	No	No	Yes	Yes	Yes	Yes	No	Yes	Yes	Yes	Yes	Yes	Yes	Yes
AE (not expedited)	06 (Not Weekly)	No	No	No	No	No	No	No	Y/N ²	No	No	No	No	No	No	No	No	No
SE	06 (Weekly) SE = SE11 (POS 5) is set to "W"	Yes	No	No	No	No	Yes	Yes	No	Yes	No	Yes	Yes	Yes	No	No	No	Yes
AE (not expedited)	06 (Weekly) AE = AE10 (POS 68) (PGA Data Included Indicator) is set to "F"	No	Yes	Yes	No	No	No	No	Yes	No	No	No	No	No	Yes	Yes	Yes	No
SE, AE Certified	07	Yes	Yes	Yes	Yes	No	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
SE, AE Certified	11	Yes	Yes	No	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
SE, AE Certified	12	Yes	Yes	No	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
SE, AE Certified	21	Yes	Yes	No	Yes	Yes	Yes	No	Yes	Yes	Yes ⁴	Yes ⁴	No	Yes	Yes	No	No	No
SE, AE Certified	22	No	No	No	No	No	No	No	No	No	No	No	No	No	No	No	No	No
SE, AE Certified	23	Yes	Yes	No	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	No
SE, AE Certified	52	Yes	Yes	Yes	Yes	No	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	No	Yes	Yes
SE	86	Yes	Yes	No	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
AE	31	No	No	Yes	No	Yes	No	Yes	No	No	No	No	No	No	No	Yes	Yes	Yes
AE	32	No	No	Yes	No	Yes	No	Yes	No	No	No	No	No	No	No	Yes	Yes	Yes
AE	34	No	No	Yes	No	Yes	No	Yes	No	No	No	No	No	No	No	Yes	Yes	Yes
AE	38	No	No	Yes	No	Yes	No	Yes	No	No	No	No	No	No	No	Yes	Yes	Yes
³ AE: Not Certified + Is Expedited (AE10 (POS 68) is set to "Y")	Not Type 06	No	No	No	No	No	No	No	No	No	No	No	No	No	Yes	No	No	No

This table (yes/no) indicates enforcement of the flags requirement.

YES - PGA flagging is enforced

NO - PGA flagging is not enforced

If a condition/entry type is not listed in this table, the PGA flag is not expected to be enforced for that condition.

This document is not commenting on when and what kind of transaction to use when trade files an entry. It only indicates the flagging that will be enforced when a particular transaction type is filed.

¹ These agencies currently do not have HTS flags. However, the agencies still have data requirements that must be met.

² For EPA VNE, Entry type 06, trade must file at either SE/Entry or AE/Entry Summary (if two-step), or at AE/Certified Entry Summary (if one-step).

³ Other than for NHTSA, these Entry Summaries should not have PGA data. If cargo is regulated by PGAs, trade must file an ACE Cargo Release (SE) or ACE Entry Summary Certified for ACE Cargo Release (AE Certified).

⁴ FDA flagging is enforced, subject to appropriate conditions. See FDA's ACE Supplemental Guide for different ET21 scenarios.



U.S. Customs and
Border Protection

Pub # 5340-0226

